

The Transfer Of Property (Amendment) Supplementary Act, 1929

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The Transfer Of Property (Amendment) Supplementary Act, 1929

UNION OF INDIA

India

The Transfer Of Property (Amendment) Supplementary Act, 1929

Act 21 of 1929

Published on 1 January 1929

Commenced on 1 January 1929

[This is the version of this document from 1 January 1929.]

[Note: The original publication document is not available and this content could not be verified.]

An Act to supplement the Transfer of Property (Amendment) Act, 1929.

WHEREAS by reason of the passing of the Transfer of Property (Amendment) Act, 1929, it is expedient that certain amendments whould be made in certain other enactments; It is hereby enacted as follows:-

1.

Short title and commencement.-

(1)

This Act may be called the Transfer of Property (Amendment) Supplementary Act, 1929 .

(2)

It shall come into force on the first day of April, 1930 .

15.

(1)

Save as provided in sub- section (2), nothing in this Act shall be deemed to affect-

- (a) the terms or incidents of any transfer or disposition of property made or effected before the first day of April, 1930 ;
- (b) the validity, invalidity, effect or consequences of anything already done or suffered before the aforesaid date;
- (c) any right, title, obligation or liability already acquired; accrued or incurred before such date;
- (d) any remedy or proceeding in respect of such right, title, obligation or liability; or
- (e) anything done in the course of any proceeding pending in any Court on the aforesaid date; and any such remedy or proceeding may be enforced, instituted or continued, as the case may be, as if this ACT had not been passed.

(2) Notwithstanding anything contained in section 9 of this Act, in the Presidency of Bombay and such other territories as the Central Government may, by notification in the Official Gazette, specify in this behalf, f a suit by a mortgagee for foreclosure or sale on a mortgage by deposit of title- deeds may be instituted within two years from the date of the commencement of this ACT, or within sixty years from the date when the money secured by the mortgage became due, whichever period expires first; and no such suit instituted within the said period of sixty years and pending at the date of the commencement of this ACT, either in a Court of first instance or of appeal, shall be dismissed on the ground that the twelve years' rule of limitation is applicable.

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